

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201701565	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/01/2017 7:25 AM	Location of Incident: § 87(2)(b) over the phone	18 Mo. SOL 9/1/2018	Precinct: 94		
Date/Time CV Reported Wed, 03/01/2017 9:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/01/2017 9:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Shaw	20476	946634	WARRSEC
2. POM Thomas Guy	19685	950549	WARRSEC
3. DT3 Starlette Gillespie	04534	940000	WARRSEC
4. POM Steven Colon	02525	940019	WARRSEC
5. DT3 Jaime Arroyo	01287	905719	094 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Starlette Gillespie	Abuse: Detective Starlette Gillespie entered and searched § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . POM Michael Shaw	Abuse: Police Officer Michael Shaw entered and searched § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . POM Steven Colon	Abuse: Police Officer Steven Colon entered and searched § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . POM Thomas Guy	Discourtesy: Police Officer Thomas Guy spoke discourteously to § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	D . Unsubstantiated
E . DT3 Jaime Arroyo	Abuse: Detective Jaime Arroyo refused to provide his name and shield number to § 87(2)(b) over the phone.	E . Unsubstantiated

Case Summary

On March 1, 2017, § 87(2)(b) filed the following complaint via the CCRB's call processing system on behalf of herself and her § 87(2)(b) daughter, § 87(2)(b).

On March 1, 2017, at approximately 7:25 a.m., Police Officer Michael Shaw, Detective Starlette Gillespie, Police Officer Thomas Guy, and Police Officer Steven Colon, all from the Brooklyn North Warrant Squad, arrived at § 87(2)(b) in Brooklyn. § 87(2)(b) was parked outside with § 87(2)(b) and her § 87(2)(b) son, § 87(2)(b) entered the building and went upstairs to get an umbrella from her apartment. PO Shaw, Det. Gillespie, and Det. Colon allegedly followed § 87(2)(b) upstairs and entered the apartment without permission (**Allegation A, Allegation B, Allegation C**). PO Guy approached § 87(2)(b) who was still inside of her vehicle and asked her about § 87(2)(b) and § 87(2)(b)'s ex-boyfriend, § 87(2)(b). § 87(2)(b) told PO Guy that § 87(2)(b) had gone upstairs for an umbrella. PO Guy allegedly said, "Come on baby, come on. What fucking umbrella?" or "She's not going for a fucking umbrella," and ordered § 87(2)(b) to open the trunk of her vehicle (**Allegation D**). § 87(2)(b) returned downstairs followed by PO Shaw, Det. Gillespie, and PO Colon, who also approached § 87(2)(b)'s vehicle and asked questions about § 87(2)(b) whereabouts. PO Shaw handed his business card to § 87(2)(b) and she was allowed to drive away with her children.

At approximately 8:34 a.m. later that day, § 87(2)(b) contacted Detective Jaime Arroyo of the 94th Precinct Detective Squad about this incident. During that phone call, § 87(2)(b) requested Det. Arroyo's name and he allegedly responded, "Who are you for me to provide my name?" in Spanish (**Allegation E**). No arrest or summonses resulted from this incident.

There is no video evidence in this case.

This case was delayed due to scheduling conflicts with § 87(2)(b).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of June 19, 2017, a Notice of Claim has not been filed with the New York City Comptroller's Office (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint and § 87(2)(b)'s first CCRB Complaint (Board Review 04) (Board Review 05).
- PO Shaw has been a member of service for nine years and has one prior CCRB complaint that was withdrawn (see officer history).
- PO Guy has been a member of service for six years and has five prior CCRB complaints containing a total of eight allegations, none of which were substantiated. In cases 201406690 and 201408836, allegations of discourtesy were unsubstantiated. § 87(2)(g)

- Det. Gillespie has been a member of service for 11 years and has eight prior CCRB complaints containing a total of 19 allegations. In case 201210114, a frisk allegation was substantiated with a penalty of forfeiture of two vacation days. Two premises searched allegations were closed as unsubstantiated and complaint withdrawn. § 87(2)(g)
- PO Colon has been a member service for 11 years and has one prior CCRB complaint containing a total of three allegations. § 87(2)(g)
- Det. Arroyo has been a member of service for 23 years and has 10 prior CCRB complaints containing a total of 21 allegations. In case 200309346, a refusal to provide name and shield allegation was substantiated and Det. Arroyo was issued a penalty of instructions. In case 200006530, a refusal to provide name and shield allegation, a frisk allegation, and a question allegation were all substantiated with charges, but the NYPD instead issued Command Discipline B (see officer history).

Potential Issues

Although § 87(2)(b) identified her § 87(2)(b) son, § 87(2)(b) as a witness, she did not allow him to provide a statement to the CCRB.

Findings and Recommendations

Allegation not pleaded

§ 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Michael Shaw entered and searched § 87(2)(b) in Brooklyn.

Allegation B –Abuse of Authority: Detective Starlette Gillespie entered and searched § 87(2)(b) in Brooklyn.

Allegation C –Abuse of Authority: Police Officer Steven Colon entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) said that she entered her apartment building to obtain an umbrella from her apartment. She observed approximately six or seven officers wearing in suits walking an inch behind her, but she was unaware that they were also going to her apartment. § 87(2)(b) entered her apartment and went inside her bedroom. Approximately 30 seconds later, § 87(2)(b) heard a door open and heard Det. Gillespie say, “Hello.” The officers had not knocked or requested consent prior to entering the apartment. § 87(2)(b) exited her bedroom and found PO Shaw, Det. Gillespie, and PO Colon in the living room. Det. Gillespie asked whether there was anyone else inside of the apartment. § 87(2)(b) told Det. Gillespie that her brother, § 87(2)(b) was home and Det. Gillespie asked her to bring § 87(2)(b) to the officers. § 87(2)(b) opened the door to § 87(2)(b)s bedroom, but § 87(2)(b) was asleep. The officers looked inside § 87(2)(b)s bedroom from the doorway, but did not enter.

Det. Gillespie followed § 87(2)(b) into her bedroom and asked whether she was sure she was alone. She later asked § 87(2)(b) for her boyfriend's name and said she was looking for § 87(2)(b) § 87(2)(b) § 87(2)(b)'s ex-boyfriend, and asked § 87(2)(b) whether she had seen him recently. § 87(2)(b) told Det. Gillespie that she does not speak to § 87(2)(b) anymore and that she had not done so in a long time. Det. Gillespie looked inside the bathroom and inside § 87(2)(b) § 87(2)(b)'s bedroom. § 87(2)(b) told Det. Gillespie that she was going to be late for school and walked out of the apartment. § 87(2)(b) and the officers remained inside for approximately one minute before following behind § 87(2)(b) (Board Review 6).

§ 87(2)(b) did not witness this aspect of the incident, but recounted that § 87(2)(b) later explained that she did not lock the front door of their apartment when she went inside to get an umbrella and that is how the officers gained entry (Board Review 07).

PO Shaw, Det. Gillespie, and PO Colon were all consistent in saying that they arrived at the location with an I-card for § 87(2)(b). PO Shaw observed § 87(2)(b) in the hallway and called out to her but she did not respond and entered the apartment. PO Shaw said that he called out to § 87(2)(b) from the open front door. PO Shaw said he asked § 87(2)(b) if she would show that only she and her brother were home. § 87(2)(b) said "yes" and stepped back. PO Colon said that when PO Shaw asked § 87(2)(b) whether the officers could enter the apartment, § 87(2)(b) opened up the door, stepped back, and said "yes." Det. Gillespie said that § 87(2)(b) never verbally said the officers could come inside, but indicated that the officers had permission to enter by opening the door and stepping back. PO Shaw, Det. Gillespie, and PO Colon said that they remained in the living room and never entered any other room inside of the apartment. Det. Gillespie said the officers remained inside for approximately two or three minutes while PO Colon said that it was approximately 30 seconds. (Board Review 08) (Board Review 09) (Board Review 10).

§ 87(2)(g)

It is therefore recommended that **Allegation A, Allegation B, and Allegation C** be closed as **unsubstantiated**.

Allegation D–Discourtesy: Police Officer Thomas Guy spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege that PO Guy spoke discourteously toward her during her CCRB interview. However, during a subsequent phone call with the CCRB, § 87(2)(b) said that when PO Guy approached her vehicle, he asked her why § 87(2)(b) was going upstairs, and she said that § 87(2)(b) was getting an umbrella. § 87(2)(b) alleged that PO Guy replied, "Come on baby, come on. What fucking umbrella?" She later alleged that PO Guy actually said, "She's not going for a fucking umbrella."

PO Guy did not recall whether § 87(2)(b) told him that § 87(2)(b) went upstairs to get an umbrella. PO Guy denied making either of the alleged statements and denied using profanity during the incident (Board Review 11) (Board Review 12).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Abuse of Authority: Detective Jaime Arroyo refused to provide his name and shield number to § 87(2)(b)

Later that day, § 87(2)(b) called the 94th Precinct Detective Squad to request information about the officers who visited her home. § 87(2)(b) spoke to Det. Arroyo in Spanish and requested his name. Det. Arroyo allegedly responded, in Spanish, “¿Quien eres tú para yo darte mi nombre?” which translates to “Who are you for me to tell you my name?” Det. Arroyo also said he was not required to provide her with his name. § 87(2)(b) recognized Det. Arroyo’s voice from previous interactions and had previously obtained his name by hearing people call him “Arroyo.”

Det. Arroyo acknowledged speaking with § 87(2)(b) on the phone during this incident. § 87(2)(b) was upset and asked him whether he had visited her home. § 87(2)(b) who already has his direct phone number and knew who he was from previous discussions in regard to other cases, asked for his name. Det. Arroyo said he responded, “This is Detective Arroyo” (Board Review 13).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Squad: **14**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date